CYBER LIABILITY

SECTION I: INSURING AGREEMENTS

Coverage A – Network Security and Privacy Liability

We (the "Insurer") will pay on behalf of the Insured all sums the Insured is legally obligated to pay as **Damages** and **Defense Costs** resulting from any **Claim** first made against the Insured during the **Policy Period** (or any applicable Extended Reporting Period) and reported to us in accordance with Section V, arising out of a **Security Breach** or **Privacy Breach**. This coverage applies only if the act, error, omission or incident giving rise to the Claim first occurred on or after the **Retroactive Date** specified in the Declarations and before the end of the Policy Period. We have the right and duty to defend the Insured against any such Claim, even if the allegations are groundless or false, until the applicable Limit of Liability is exhausted by payment of judgments, settlements, or Defense Costs.

Coverage A is provided on a claims-made and reported basis. All Claims arising out of interrelated acts or events shall be deemed one Claim first made on the date the earliest such Claim was made. Coverage A provides liability-only coverage for third-party Claims and does not cover first-party costs or losses, which may be addressed by endorsement. No other coverage is provided under this Coverage Part unless added by endorsement.

SECTION II: DEFINITIONS

For purposes of this Coverage Part, the following definitions apply (terms appearing in **bold** are defined terms):

A. **Claim** means:

   1. a written demand received by an Insured for monetary or non-monetary relief, including a demand for injunctive relief; or
   2. a civil proceeding, arbitration, or alternative dispute resolution proceeding initiated against an Insured, seeking to hold the Insured responsible for a Wrongful Act;

   A Claim is considered first made on the date the Insured or the Insurer first receives notice of such demand or proceeding. **Claim** does not include any criminal proceeding or any investigation or regulatory action initiated by a governmental or regulatory authority (except to the extent such coverage is added by endorsement).

B. **Damages** means compensatory amounts (including settlements and judgments) which an Insured becomes legally obligated to pay as a result of a covered Claim. Damages include court-awarded attorneys' fees and costs of the claimant if so awarded. **Damages** do **not** include: fines or penalties (except to the extent insurable by law and covered by endorsement), punitive or exemplary damages (to the extent uninsurable by law), taxes, fees, or sanctions; the multiplied portion of any multiplied damage award; the return or disgorgement of profits, fees or charges; the cost to comply with injunctive or non-monetary relief (including the cost to improve or remediate any security flaws or to upgrade, replace, or improve any Computer System); or any matter which is uninsurable under the law pursuant to which this Policy is construed.

C. **Defense Costs** means reasonable and necessary legal fees and expenses incurred in the investigation, defense, or appeal of a Claim covered by this Coverage Part, including costs of litigation, mediation or arbitration, and prejudgment interest. Defense Costs do

not include salaries, overhead or other internal expenses of any Insured or the Insurer. **Defense Costs** are included within (and not in addition to) the Limits of Liability applicable to this Coverage Part, and payment of Defense Costs will reduce and may exhaust applicable Limits of Liability.

D. **Security Breach** means an act or event resulting in unauthorized access to, unauthorized use of, or malicious interference with a Computer System. This includes:

1. the intentional unauthorized access to or use of the Insured's Computer System by any person (including hacking);
2. the infection of the Insured's Computer System by malicious code or software (such as viruses, worms, or malware) originating from outside the Insured's organization;
3. a **Denial of Service Attack** (intentional interruption of access to a Computer System, including by overloading or flooding a network);
4. the Insured's Computer System being used to participate in or facilitate a denial of service attack or spread of malicious code to a third party's system.

E. **Privacy Breach** means any of the following committed by the Insured or for which the Insured is legally responsible:

1. the theft, loss, or unauthorized disclosure of or unauthorized access to **Personal Information** or **Corporate Information** in the care, custody or control of the Insured (or a third party service provider holding such information on behalf of the Insured);
2. an failure to properly handle, manage, store, destroy or otherwise protect Personal Information or Corporate Information in accordance with any duty imposed by law or contract;
3. any violation of a **Privacy Law** by the Insured, including any failure to provide any required notice of an actual or suspected unauthorized disclosure of Personal Information or Corporate Information.

F. **Privacy Breach** includes any such acts or incidents whether by negligence or accidental error, and includes incidents caused by rogue employees or by external actors. Multiple incidents arising from the same or related facts or security vulnerabilities shall be considered a single Privacy Breach.

G. **Personal Information** means any information or data, in any format, that can be used to identify an individual person (such as a customer, client, or consumer) or that is otherwise defined as personally identifiable information, personal data, or similar term under applicable law. Personal Information includes, but is not limited to: an individual's name, address, telephone number, email address, social security or other government-issued identification number, driver's license number, passport number, financial account or payment card number, account passwords or access credentials, biometric identifiers (e.g. fingerprint, retina, or face scans), medical or health information, or any other non-public personal information as defined by any Privacy Law. Personal Information does not include information that is lawfully made available to the general public from government records or widespread public sources.

H. **Corporate Information** (also known as confidential corporate information or third-party corporate information) means any confidential or proprietary information of a third-party

entity (such as a business client or partner) that is not available to the general public, and which is provided to the Insured under an agreement or obligation to keep such information confidential. Corporate Information includes, but is not limited to: trade secrets, manufacturing processes, designs, plans, formulas, non-public financial information of a third party, source code or software of a third party, client lists, or any similar proprietary business information of a third party that is not intended for public release.

I. **Computer System** means computers, servers, networking equipment, cloud computing resources, communications systems, electronic devices, and associated input, output, processing, storage or communication devices (including websites, intranets, and mobile devices) that are owned, leased, or operated by the Insured Organization. **Computer System** also includes any such systems operated or provided by a third-party service provider under a written contract to maintain, process, store, or transmit electronic data for the Insured (including cloud storage services or hosting providers), to the extent the Insured is legally liable for incidents affecting those systems.

J. **Privacy Law** means any statute or regulation (including any similar foreign, federal, state or local law) that governs the collection, use, safeguarding, disposal, or confidentiality of Personal Information, or notification to persons affected by unauthorized disclosure of Personal Information. **Privacy Law** includes, but is not limited to, data protection and privacy laws such as the California Consumer Privacy Act (CCPA), the General Data Protection Regulation (GDPR), the Health Insurance Portability and Accountability Act (HIPAA), Gramm-Leach-Bliley Act (GLBA), state breach notification laws, and any rules or regulations promulgated under the foregoing. Privacy Law also includes any law that requires the Insured to implement and follow a privacy policy or to timely notify individuals or authorities in the event Personal Information is compromised.

K. **Insured** means the Named Insured stated in the Declarations, and any of its Subsidiaries, and any past or present directors, officers, or employees of the foregoing, but only while acting within the scope of their duties on behalf of the Named Insured. (For purposes of this Coverage Part, an employee is not considered an Insured when making a Claim against the Insured Organization in his or her capacity as an independent third-party data subject.)

L. **Insured Organization** means the entity designated as the Named Insured in the Declarations and any Subsidiary thereof. (References to “Insured” include the Insured Organization as applicable.)

M. **Subsidiary** means any entity of which the Named Insured owns more than 50% of the voting stock or has majority control, either on or before the inception date of this Policy or acquired or created during the Policy Period (subject to the provisions of the Policy regarding acquisitions or newly formed entities).

N. **Retroactive Date** means the date specified in the Declarations as the Retroactive Date for this Coverage Part. The Policy will not cover any act, error, omission, incident or Security Breach or Privacy Breach that occurred (or is alleged to have occurred) before this date.

SECTION III: LIMITATIONS OF LIABILITY AND RETENTIONS

A. **Limits of Liability:** The Limits of Liability stated in the Declarations for this Coverage Part apply as follows:

1. **Each Claim Limit:** The amount specified as the "Each Claim" Limit is the maximum we will pay for Damages and Defense Costs combined for each single Claim covered under this Coverage Part. If no separate "Each Claim" limit is stated, then the Coverage Part Aggregate Limit applies to each Claim. All Related Claims (as defined below) shall be deemed one Claim and shall collectively be subject to one Each Claim Limit (if applicable).

2. **Coverage Part Aggregate Limit:** The amount specified in the Declarations as the Aggregate Limit for this Coverage Part is the maximum amount we will pay for all covered Claims combined under this Coverage Part. This aggregate limit is inclusive of all Defense Costs and Damages for all Claims. Once the Coverage Part Aggregate Limit is exhausted by payment of Damages and/or Defense Costs, we shall have no further obligation to defend or pay any Claim or Loss under this Coverage Part.

3. **Related Claims:** Claims that arise from the same or related facts, circumstances, situations, events, or series of events will be considered a single Claim for the purposes of Limits of Liability and Retention. All such Claims will be deemed first made at the time the earliest of those Claims was first made against any Insured, or when notice of a circumstance was first given to us in accordance with this Policy, whichever is earlier.

B. **Retention:** The Retention amount stated in the Declarations for this Coverage Part (as applicable to Coverage A – Network Security and Privacy Liability) shall apply to each Claim. The Insured must bear all covered Damages and Defense Costs up to the amount of the Retention for each Claim, and we will only be liable for amounts in excess of such Retention. The Retention applies separately to each Claim (including Related Claims deemed as one Claim). We have no obligation to pay any part of the Retention on behalf of the Insured. The Retention is not reduced by our adjustment, investigation, or defense of a Claim, and the Retention will remain the responsibility of the Insured even if the Insured does not pay it due to insolvency or bankruptcy.

C. **Other Limitations:** Payments of Defense Costs are subject to the Limits of Liability and will reduce the remaining available limit. If a single Claim triggers coverage under this Coverage Part and one or more additional Coverage Parts or endorsements, the maximum combined amount payable by us shall not exceed the highest applicable single limit for any one such coverage (no stacking of limits).

SECTION IV: EXCLUSIONS

The coverage under Coverage A – Network Security and Privacy Liability is subject to the following exclusions. We will not be liable to make payment for any Claim or Loss (including any Defense Costs or Damages) directly or indirectly arising out of, based upon, or attributable to any of the following:

A. **Uninsurable or Illegal Matters:** Any cost, loss or liability that is uninsurable under the law pursuant to which this Policy is construed. This includes, without limitation, fines,

penalties, or sanctions imposed by any governmental or regulatory authority, multiplied damages, and matters deemed uninsurable as a matter of law. (However, this exclusion will not apply to the extent that such fines or penalties are covered under a separate endorsement to this Policy and are legally insurable in the applicable jurisdiction.)

B. **Known Prior Acts / Prior Notice:** Any act, error, omission, incident or circumstance that occurred prior to the inception date of this Policy if, on or before the inception date, any member of the Insured's **Control Group** knew or reasonably could have foreseen that such circumstance might result in a Claim. This exclusion also applies to any Claim or circumstance that has been the subject of any notice given under any prior insurance policy or coverage.

C. **War, Terrorism, and Nuclear Incidents:** Any war, act of war (whether declared or undeclared), invasion, military action, civil war, insurrection, rebellion, revolution, or civil commotion; any act of terrorism or terroristic warfare (including cyber terrorism); or any nuclear reaction, radiation, radioactive contamination, or the dispersal or application of pathogenic or poisonous biological or chemical materials. This exclusion applies regardless of any other cause or event contributing concurrently or in any sequence to the Claim. *(This Exclusion shall not apply to the extent (if any) that coverage may be expressly provided in an endorsement for defined cyber terrorism events in a first-party context. However, no coverage is provided under this Coverage Part for loss or liability caused by terrorism or war unless specifically endorsed.)*

D. **Bodily Injury and Tangible Property Damage:** Any Claim for actual or alleged bodily injury, sickness, disease, death, or emotional distress of any person, or for physical injury to or destruction of any tangible property (including loss of use thereof). This exclusion also applies to any Claim for mental anguish or emotional distress, pain and suffering, or similar injury alleging a resulting bodily injury. **However,** this exclusion shall **not** apply to claims of mental anguish or emotional distress brought by a third-party claimant that result directly from a covered Security Breach or Privacy Breach (for example, a claim of emotional distress by a data breach victim), **and** this exclusion does not apply to loss or corruption of electronic data (which is not considered tangible property).

E. **Contractual Liability:** Any liability assumed by any Insured under any contract or agreement, including but not limited to hold-harmless or indemnity agreements, service level agreements, or contractual warranties or guarantees. This exclusion applies to the extent the Claim against the Insured is based upon the Insured's assumption of the liability or obligations of others by contract. **However,** this exclusion shall **not** apply to:

1. liability for a Security Breach or Privacy Breach that the Insured would have in the absence of such contract or agreement;
2. any obligation to maintain the confidentiality or security of Personal Information or Corporate Information that the Insured has assumed by contract, **but only** to the extent a Claim arises out of a Security Breach or Privacy Breach (for example, a contractual confidentiality agreement breached due to a hacking incident); or
3. any obligation to comply with a Privacy Law or to implement reasonable security measures required by law or contract, to the extent the Claim alleges negligence or breach of duty resulting in a Privacy Breach (this carve-back does not provide coverage for contractual penalties or fines, which remain excluded unless covered by endorsement).

(For clarity, this Coverage Part is intended to cover the Insured's liability for a third party's damages arising from a data breach or security failure. It does not cover the Insured's mere failure to meet a contract performance guarantee if no Security Breach or Privacy Breach occurred — such matters may be covered under professional liability coverage if applicable.)

F. **Fraudulent, Dishonest or Criminal Conduct:** Any deliberately dishonest, fraudulent, criminal or malicious act, error or omission, or any intentional or willful violation of law, by an Insured. If a Claim includes allegations of both covered wrongdoing and excluded conduct in this category, we will provide a defense to such allegations until there is a final judgment or final adjudication in any proceeding establishing that the Insured committed such dishonest, fraudulent, criminal or willful conduct, or a written admission by the Insured of such conduct. After such final adjudication or admission, the Insured shall reimburse us for any Defense Costs paid in connection with the allegations of such conduct. This exclusion does not apply to any Insured who did not personally commit, participate in, or ratify the alleged act, error or omission. Knowledge or conduct of one Insured shall not be imputed to any other individual Insured for the purposes of this exclusion.

G. **Unauthorized or Unlawful Collection and Distribution of Information:** Any Claim arising out of: the unauthorized or unlawful collection, acquisition, monitoring, tracking, use, sale, sharing, or distribution of Personal Information by an Insured; or any unsolicited electronic or non-electronic communication, including unsolicited marketing, advertising, spam, telemarketing, unsolicited emails or faxes, or violations of any anti-spam or do-not-call legislation (such as the Telephone Consumer Protection Act (TCPA), CAN-SPAM Act, or similar laws). This exclusion includes, but is not limited to, Claims alleging intrusion upon seclusion, invasion of privacy, or statutory violations arising from the Insured's improper collection of data or transmission of communications. **However,** this exclusion shall **not** apply to an otherwise covered Claim that results from a Security Breach or Privacy Breach. *(For example, a Claim alleging that the Insured wrongfully failed to comply with a consumer data-protection statute as a result of a hacking incident would not be excluded; but a Claim alleging the Insured unlawfully gathered personal data or sent spam marketing communications without a breach would be excluded.)*

H. **Infrastructure Outage or Failure Beyond Insured's Control:** Any Claim based upon or arising out of any failure, interruption, outage, or degradation of electrical power, utility service, internet service, cable, satellite, telecommunications, or other infrastructure not owned or controlled by the Insured. This includes the failure of external service providers or utility providers to provide adequate service, and any outages or disruptions caused by infrastructure breakdown outside of the Insured's Computer System. **However,** this exclusion will not apply to the extent the outage or failure arises from a Security Breach or Privacy Breach occurring within the Insured's own Computer System or within the computer system of a service provider while hosting or processing the Insured's data (in which case coverage is determined as a covered Security Breach or Privacy Breach).

I. **Improvement or Upgrade Costs:** Any costs or expenses to research, develop, re-design, improve, upgrade, replace, restore, maintain or enhance the Insured's Computer Systems, security practices, procedures or any other systems, to a level beyond that which existed prior to any covered incident. This includes the cost to implement security improvements, upgrades, patches, or fixes, or the cost to comply with non-monetary relief such as an injunction or consent decree. (This exclusion does not

apply to covered Data Restoration costs or other first-party loss that may be provided by a separate endorsement; however, such costs are not covered under this liability Coverage Part.)

J. **Media and Intellectual Property Liability:** Any Claim arising out of or alleging: libel, slander, defamation, disparagement, or harm to the reputation or character of any person or organization; invasion of privacy or wrongful publicity (other than a Privacy Breach as defined); infringement of copyright, title, slogan, trademark, trade dress, service mark, or trade name; plagiarism, piracy, or misappropriation of ideas; infringement of intellectual property rights or any act of passing off, unfair competition or dilution related to intellectual property; or any publishing, broadcasting, printing or media-related activities by the Insured. This exclusion applies to any Claim based on the Insured's content or media activities, including website or social media content, advertising materials, or any other media publication. **However,** this exclusion shall **not** apply to a Claim by a third party for unauthorized disclosure of their trade secrets or confidential corporate information **if and only if** such Claim results directly from a Security Breach or Privacy Breach (for example, a hack or theft of trade secrets from the Insured's Computer System). *(Coverage for other media liability or intellectual property claims may be provided by endorsement if purchased, but is not included in this base Coverage Part.)*

K. **Professional Services and Contractual Performance:** Any Claim arising out of or resulting from the rendering of or failure to render professional services, advice, or consultation by the Insured (or on the Insured's behalf), including any breach of contract or agreement for the rendering of such services. This includes, but is not limited to, any Claim alleging negligence, errors or omissions in performing professional services, or any obligation to refund fees or charges for such services. **However,** this exclusion does not apply to a Claim that is otherwise covered under Coverage A – Network Security and Privacy Liability and that arises from a Security Breach or Privacy Breach (even if the breach occurs in the course of providing professional services). *(In other words, pure professional malpractice or contract claims are not covered under this Coverage Part; those may fall under Technology Errors & Omissions coverage if purchased. But if a data breach or cyber incident occurs during professional services, the resulting cyber liability Claim may still be covered here, subject to all other terms.)*

L. **Insured vs. Insured:** Any Claim made by, on behalf of, or for the benefit of: (1) any Insured; or (2) any business entity that is owned, controlled by, or is the parent company or affiliate of any Insured. This includes any Claim brought by any Named Insured against another Insured, or by any Insured person (such as a director, officer or employee) against the Insured Organization. **However,** this exclusion shall **not** apply to:

1. a Claim made by an employee of the Insured who is a victim of a Privacy Breach (for example, an employee whose personal data was compromised in a breach suing the Insured in their capacity as an individual data subject), **provided that** no other Insured who is a party to the Claim is directly or indirectly controlling or directing the Claimant's action; or
2. a Claim made by an additional insured (such as a client of the Insured) that is specifically added by endorsement for the purpose of claims against the Insured.

(Note: While some employee privacy Claims may be covered as noted above, coverage for Claims by employees of the Insured is limited in this base form. Broader coverage for employee privacy liability can be provided by endorsement if needed.)

M. **Regulatory Proceedings:** Any Claim or proceeding brought by or on behalf of a governmental, regulatory, supervisory or licensing body in the Insured's capacity as a regulated entity, including any investigation or enforcement action by such authorities. This includes, without limitation, any civil investigative demand, inquiry, or proceeding by a government agency alleging violation of privacy or data protection laws or regulations (such as a Privacy Regulatory Action). **However,** this exclusion does **not** apply to Claims brought by individuals or entities other than government agencies, even if such Claims allege violations of privacy laws (for example, a lawsuit by consumers under a privacy statute is not considered a regulatory proceeding for purposes of this exclusion). *(Defense and penalty coverage for regulatory proceedings may be offered by endorsement, but is not included in this base Coverage Part.)*

N. **Contaminant:** This Policy does not apply to any Claim, Loss or other matter based on or related to the discharge, dispersal, release, escape or presence of a **Contaminant**.

O. **(Other Exclusions):** Any other exclusions set forth in the General Terms and Conditions or elsewhere in the Policy that are not inconsistent with the above shall also apply to this Coverage Part. In the event of any conflict between these specific Coverage Part exclusions and the General Exclusions in the base Policy, the provision that is more specific to the Claim at issue shall apply.

SECTION V: NOTICES AND CONDITIONS

A. **Claims-Made and Reporting Provisions:** This Coverage Part provides coverage on a claims-made and reported basis. Coverage applies only to Claims first made against the Insured during the Policy Period (or any Extended Reporting Period, if applicable) and reported to us in writing as soon as practicable, but in no event later than the time specified in this Policy. The Insured must give written notice of any Claim to us no later than [60] days after the end of the Policy Period, unless an Extended Reporting Period applies.

B. **Notice of Claims:** In the event any Claim is made against an Insured, the Insured (or its authorized agent) must notify us in writing as soon as reasonably possible. Notice should include a description of the Claim and all relevant details (the parties involved, the alleged wrongful acts, date of occurrence, and the nature of any potential Damages). Notice of Claims shall be directed to the address or email designated in the Declarations for reporting claims. The date of mailing or electronic transmission of notice will constitute the date notice is given. Prompt notice of Claims is a condition precedent to coverage under this Policy.

C. **Notice of Potential Claims (Circumstance Reporting):** If during the Policy Period an Insured becomes aware of any circumstances or incident that could reasonably be expected to give rise to a Claim (including but not limited to any incident that the Insured believes constitutes a Security Breach or Privacy Breach), the Insured may provide written notice to us with full details of such circumstance or incident. The notice should include the specific wrongful act or incident, the dates and persons involved, the potential claimants, and the consequences or damages anticipated. If such notice is given to us during the Policy Period in accordance with this condition, then any Claim subsequently arising from the reported circumstance shall be deemed to have been first made on the date we received the circumstance notice, and will be covered (if at all) under this Policy (subject to its terms and limits), even if actually made after the Policy

Period. This provision does not extend coverage beyond any date or time period provided in an applicable Extended Reporting Period unless such ERP is in force.

D. **Extended Reporting Period (Tail Coverage):**

1. **Automatic Extended Reporting Period:** If either the Insured or we cancel or non-renew this Policy (or this Coverage Part), other than for non-payment of premium, we will provide an automatic extended reporting period of 60 days starting immediately after the end of the Policy Period. This automatic period is provided without additional charge. It covers Claims first made during this 60-day period, but only for wrongful acts or incidents that occurred before the end of the Policy Period (and after the Retroactive Date) and would have been covered by this Coverage Part. This automatic Extended Reporting Period does not reinstate or increase any Limits of Liability; it only allows additional time for reporting Claims.

2. **Optional Extended Reporting Period:** The Named Insured has the right, upon termination of this Coverage Part or the Policy, to purchase an Optional Extended Reporting Period for an additional premium. This Optional Extended Reporting Period (often called the “tail”) will apply for the time period selected (as offered by the Insurer, e.g., 12 months or 36 months) from the end of the Policy Period. The Optional Extended Reporting Period, if purchased, must be requested in writing and the premium paid within 30 days after the termination or expiration of the Policy. If purchased, this extended period will be endorsed to the Policy. During the Optional Extended Reporting Period, coverage is only provided for Claims first made against the Insured and reported to us during the Extended Reporting Period and arising from acts, errors, omissions, Security Breaches or Privacy Breaches that occurred entirely prior to the end of the original Policy Period (and on or after the Retroactive Date). The Extended Reporting Period does not increase or replenish the Limits of Liability – any payments made for Claims during an Extended Reporting Period are subject to the remaining unused Limits of Liability as of the end of the original Policy Period. The Extended Reporting Period is non-cancellable and the premium for it is deemed fully earned when paid.

3. **Termination of ERP Rights:** The right to any Extended Reporting Period shall not be available if the Policy is canceled due to non-payment of premium, or if the Named Insured has replaced this coverage with similar insurance (whether from the Insurer or another carrier) with no gap in coverage.

E. **Duties in the Event of a Claim:** The Insured must cooperate with us and provide all information and documentation that we may reasonably request during the handling of any Claim or potential Claim. The Insured shall assist in the investigation, settlement, or defense of any Claim. This includes helping to secure and give evidence, obtaining the attendance of witnesses, and assisting in effecting any rights of contribution or subrogation. The Insured must not admit liability, incur any expense, voluntarily make any payment, assume any obligation, or enter into any settlement in connection with any Claim (or circumstance that could lead to a Claim) without our prior written consent. Any such admission, expense, payment, obligation or settlement made by an Insured without our consent will be at the Insured’s own cost and may result in a loss of coverage.

However, the refusal of the Insured to consent to a settlement recommended by us will be handled as described in paragraph F below.

F. **Settlement Authority and Consent:** We have the right to investigate and settle any Claim as we deem appropriate. We will not settle any Claim without the consent of the **Named Insured**, which consent shall not be unreasonably withheld. If the Insured refuses to consent to a settlement or compromise recommended by us and acceptable to the claimant, our liability for that Claim shall not exceed the amount for which the Claim could have been settled (including Defense Costs up to the date of such refusal). After such refusal, we will also have the right to withdraw from the defense of the Claim by tendering control of the defense to the Insured, and the Insured agrees to assume the responsibility for any further Defense Costs and damages exceeding the amount of our recommended settlement.

G. **Other Insurance:** This insurance shall apply only in excess of any other valid and collectible insurance available to the Insured, unless such other insurance is written specifically as excess insurance over the Limits of Liability of this Policy. This condition will not apply to other insurance written specifically as excess of this coverage. When this insurance is excess, we will have no duty to defend any Claim or pay any Defense Costs until the other insurance has been exhausted. If a Claim is covered both by this Coverage Part and another policy of the Insured (whether primary, excess, or umbrella), we will coordinate with such other insurer on defense and indemnity, but the total amount paid will not exceed the actual loss or applicable limits, and in no case will we pay more than our share in accordance with the applicable insurance clauses.

H. **Subrogation:** In the event of any payment under this Coverage Part, we shall be subrogated to all the Insured's rights of recovery against any third party who may be liable for the loss (including against perpetrators of a cyber incident or other responsible parties). The Insured shall do nothing to prejudice such rights and shall execute all papers required and take any reasonable action necessary to secure such rights. We agree, however, that we will not exercise any subrogation rights against any individual Insured under this Policy unless the Claim in question was brought about or contributed to by the intentional, dishonest or fraudulent act or omission of that individual Insured. Any recovery (after deducting our costs and expenses of recovery) shall be allocated first to us up to the amount of our payments, then to the Insured for any retention or other amounts paid, and lastly any remainder to the Insured as applicable.

I. **Action Against the Insurer:** No action shall lie against us unless, as a condition precedent, the Insured has fully complied with all the terms of this Policy. No person or organization shall have any right under this Policy to join us as a party to any action against any Insured to determine the Insured's liability, nor shall we be impleaded by the Insured or their legal representatives. An action against us may only be brought after the Insured's obligation to pay has been finally determined either by final judgment against the Insured after actual trial or by written agreement of the Insured, the claimant and us. Any such action must be started within the time period allowed by applicable law.

J. **Fraud and Misrepresentation:** This Coverage Part is issued in reliance upon the truth of statements made in the application and any supplemental materials. In accordance with applicable law, any material misrepresentation, omission, concealment or incorrect statement in the application may render the Coverage Part or Policy void as to an Insured, or result in denial of coverage, if such misrepresentation was made with intent to deceive or materially affected our acceptance of the risk.

K. **Conformance with Law:** In the event that any provision of this Coverage Part conflicts with the laws of any jurisdiction controlling the construction of this Coverage Part, the provision shall be deemed amended to conform to such law. If any portion of this Coverage Part is deemed invalid or unenforceable, it shall not affect the validity of the remaining provisions.

L. **Titles and Headings:** The descriptions in the headings and sub-headings of this Coverage Part are solely for convenience and form no part of the terms and conditions of coverage. Words in bold typeface are defined in Section II or in the Policy's general definitions.

M. **Coverage Part Integration:** Except as specifically provided in this Coverage Part, all terms, conditions, provisions and limits of the general Policy (including the Common Policy Conditions and Definitions) apply to this Coverage Part. In case of any inconsistency between the terms of this Coverage Part and any other part of the Policy, the terms of this Coverage Part will control with respect to the coverage afforded hereunder.

End of Cyber Liability Coverage Part.

(All other terms, conditions, and exclusions of the Policy remain unchanged